

The Gum Karaya Grading and Marking Rules, 2013

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The Gum Karaya Grading and Marking Rules, 2013

UNION OF INDIA

India

The Gum Karaya Grading and Marking Rules, 2013

Rule THE-GUM-KARAYA-GRADING-AND-MARKING-RULES-2013 of 2013

Published on 24 January 2013

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The Gum Karaya Grading and Marking Rules, 2013

Published vide Notification New Delhi, the 24th January, 2013

Ministry of Agriculture

(Department of Agriculture and Co-Operation)

G.S.R 45(E). - Whereas the draft of the Gum Karaya Grading and Marking Rules, 2012, was published as required by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide notification number G.S.R.604(E), dated the 1st August, 2012, inviting objections and suggestions from all persons likely to be affected thereby within forty-five days from the date on which copies of the said notification published in the Gazette of India were made available to the public.

And whereas copies of the said notification were made available to the public on the 6th August, 2012;

And whereas the objections and suggestions received from the public in respect of the said draft rules have been duly

considered;

Now, therefore, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937), and in supersession of the Gum Karaya Grading and Marking Rules, 1982, except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely:-

Rules

1.

Short title, application and commencement.

(1)

These rules may be called the Gum Karaya Grading and Marking Rules, 2013.

(2)

They shall apply to Gum Karaya in lumps or crystal form obtained from the exudes of plant *Sterculia urens* Roxburgh of the family Sterculiaceae.

(3)

They shall come into force from the date of their final publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires -

(a)

"Agricultural Marketing Adviser" means the Agricultural Marketing Adviser to the Government of India.

(b)

"authorised packer" means a person or a body of persons who has been granted a certificate of authorisation to grade and mark Gum Karaya in accordance with the grade standards and procedure prescribed under these rules;

(c)

"Certificate of Authorisation" means a certificate issued under the provisions of the General Grading and Marking Rules, 1988 authorising a person or a body of persons to grade and mark Gum Karaya with the grade designation mark;

(d)

"General Grading and Marking Rules" means the General Grading and Marking Rules, 1988 made under section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937);

(e)

"grade designation mark" means the "Agmark Insignia" referred to in rule 3.

(f)

"Schedule" means a Schedule appended to these rules.

(2)

Words and expressions used in these rules and not defined but defined in the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) and the General Grading and Marking Rules, 1988 shall have the same meanings as are assigned to them under that Act and the said rules.

3.

Grade designation mark.

- The grade designation mark shall consist of "AGMARK insignia" consisting of a design incorporating the number of certificate of authorisation, the word "AGMARK", name of commodity and grade designation resembling the design as set out in Schedule-I.

4.

Grade designation and quality.

- The Grade designations and the quality of Gum Karaya shall be as set out in Schedule II.

5.

Method of packing.

(1)

Gum Karaya shall be packed in clean and dry containers made of jute or cloth bags or poly woven bags with inner lining of food grade material or any other type of food grade packing material as approved by the Agricultural Marketing

Adviser or any officer authorised by him in this behalf.

(2)

The packing material shall be free from insect and fungal infestation and shall not impart any toxic substance or undesirable odour or flavour to the product.

(3)

Gum Karaya shall be packed in pack sizes as per provisions in the Legal Metrology (Packaged Commodities) Rules, 2011 or as per the instructions issued by the Agricultural Marketing Adviser from time to time.

(4)

Graded material of small pack sizes of the same lot or batch and grade may be packed in a master container with complete details thereon along with grade designation mark.

(5)

Each package shall contain Gum Karaya of the same type and of the same grade designation.

(6)

Each package shall be properly and securely closed and sealed so as to disallow spilling.

6.

Method of Marking.

(1)

The grade designation mark shall be securely affixed to or printed on each package in a manner approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules, 1988.

(2)

In addition to the grade designation mark, the following particulars shall be clearly and indelibly marked on each package, namely:

(a)

Name of the commodity;

(b)

Grade;

(c)

Variety or trade name (optional);

(d)

Lot number;

(e)

Date of packing;

(f)

Address of the place of packing;

(g)

Net weight;

(h)

Name and address of the packer;

(i)

Maximum retail price (inclusive of all taxes);

(j)

Best Before _____ Month _____ Year;

(k)

any other particulars as may be specified under the Legal Metrology (Packaged Commodities) Rules, 2011, the Food Safety and Standards Act, 2006 (34 of 2006

) or instructions issued by the Agricultural Marketing Adviser or any officer authorised by him.

(3)

The ink used for marking on packages shall not contaminate the Gum Karaya.

(4)

The authorised packer, may, after obtaining prior approval of the Agricultural Marketing Adviser or an officer authorised by him in this behalf, mark his private trade mark or trade brand on the graded packages provided that the same do not indicate quality other than that indicated by the grade designation mark affixed to the graded packages in accordance with these rules.

7.

Special conditions of certificate of authorisation.

(1)

In addition to the conditions specified in sub-rule (8) of rule 3 of the General Grading and Marking Rules, every authorised packer shall follow all other instructions specified by Agricultural marketing Adviser from time to time;

(2)

The authorised packer shall either set up his own laboratory as per the specified norms or have access to an approved State Grading Laboratory or cooperative or association laboratory or a private commercial laboratory manned by a qualified chemist approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 9 of the General Grading and Marking Rules for testing the quality of Gum Karaya.

(3)

The premises shall be maintained in hygienic and sanitary conditions with proper ventilations and well lighted arrangement and the personnel engaged in these operations shall be of sound health and free from any infectious, contagious or communicable diseases.

(4)

The premises shall have adequate storage facilities with proper flooring and free from rodent and insect infestation.

(5)

The authorised packer and the approved chemist shall comply with all instructions regarding testing, grading, packing, marking, sealing and maintenance of records which may be issued by the Agricultural Marketing Adviser or any other officer authorised by him in this behalf from time to time.

I

(See rule 3)

(Design of Agmark insignia)

Name of the commodity

Grade

II

(See rules 4)

Grade Designation And Quality of Gum Karaya

1. Gum Karaya shall be obtained from the exudes of the plant *Sterculia urens* Roxburgh of the family Sterculiaceae.

2. Minimum Requirements. - (1) Gum Karaya shall be-

(a)

dried;

(b)

free from insect infestation and fungus attack;

(c)

free from added colouring matter;

(d)

free from rodent hair and excreta;

(e)

free from animal filth, dust and dirt.

(2)

It shall comply with the restrictions in regard to residual levels of metal contaminants, insecticides and pesticides residues, microbial requirements, crop contaminants, naturally occurring toxic substances and other food safety requirements as specified under the Food Safety and Standards (Contaminants, Toxins and Residues) Regulations, 2011 and the Food Safety and Standards (Food Products Standards and Food Additives) Regulations, 2011, and other regulations notified under the Food Safety and Standard Act, 2006, for domestic trade.

(3)

It shall comply with the residual limits of heavy metals, pesticides and other food safety requirements as laid down by the Codex Alimentarius Commission, or importing countries requirement for exports.

3. Criteria For Grade Designation

Designation

Organic Extraneous matter, [per cent by mass]

(on dry basis)(max.)

Loss on drying (per cent by mass)(max.)

Total Ash [Per cent by mass] (on dry basis)(max.)

Acid Insoluble Ash [per cent by mass] (on dry basis)(max.)

Acid insoluble matter [per cent by mass] (on dry basis)(max.)

Volatile Acid as Acetic Acid [per cent by mass] (on dry basis)(min.)

Swelling property, ml(min.)

Water absorption in ml.(min.)

Starch test

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

Special

0.3

16.0

6.0

0.75

2.0

11.0

210.0

80.0

Negative

Standard

0.4

16.0

7.0

0.85

2.5

10.5

205.0

78.0

Negative

General

0.5

16.0

8.0

1.00

3.0

10.0

200.0

75.0

Negative

4. Other requirements:

1. Identification. - (i) Swelling with water. - The material shall have the quality of swelling to form a granular, stiff, slightly opalescent gel which is acidic to litmus.

(ii)

Swelling by ethanol solution. - Gum Karaya shall have the quality of swelling in 60% ethanol distinguishing it from other gums.

(iii)

Colour reaction. - (a) shall develop a permanent red or pink colour when boiled 1 gm of the sample with 20 ml of water until a mucilage is formed by adding 5 ml of hydrochloric acid and boil the mixture for five minutes.

(b)

a brown colour is produced on warming 5 gram of Gum Karaya with 2 ml of 5M sodium hydroxide.

(iv)

Precipitate formation. - A red precipitate is formed when 1 gm Gum Karaya is mixed with 80 ml of water for twenty four hours and when boiled 4 ml of resulting mucilage with 0.5 ml of concentrated hydrochloric acid and 1 ml of 5M Sodium hydroxide and filter by adding 3 ml of potassium cupritartrate solution and heated.

2. Shall be free from Chlorides and Sulphates.

3. The condition of the Gum Karaya shall be such so as to enable it-

- to withstand transport and handling; and

- to arrive in satisfactory condition at the place of destination.

4. Gum Karaya shall be stored in cool and dry place, maintained in a clean and hygienic condition.

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